

OREGON STATE HOSPITAL

POLICY

SECTION 5: Human Resources Management **POLICY: 5.005**

SUBJECT: Staff-Owned Equipment

POINT PERSON: Chief Financial Officer/Chief Operations Officer

APPROVED: Dolores Matteucci

DATE: JUNE 7, 2023

Superintendent

SELECT ONE: ☐ New policy

☒ Minor/technical revision of existing policy

☐ Reaffirmation of existing policy

☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. This policy establishes Oregon State Hospital (OSH) guidelines for staff-owned equipment while conducting business for OSH.
- B. This policy does not apply to staff-owned vehicles. Staff-owned vehicles may only be used per OSH policy 6.006, "Vehicle Usage," and applicable Department of Administrative Services or Shared Services policies and regulations.
- C. This policy applies to all staff.

II. POLICY

- A. Staff may not use personally owned equipment to conduct OSH business including, but not limited to, patient treatment, unless an exception is authorized as delineated in this policy or other Department of Administrative Services (DAS) or Shared Services policies.
- B. Staff may request an exception to this policy in writing from the Superintendent or designee, the appropriate member of the Executive Team, and department director or Program Director when the following conditions exist:
 - 1. the equipment is not available at OSH;
 - 2. the equipment can be operated safely and meets required safety standards;
 - 3. the equipment is not directly used by patients; and
 - 4. the staff member accepts liability for damage to, or loss of, equipment.

- C. If the Superintendent or designee, the appropriate member of the Executive Team, and department director or Program Director approve the request for an exception, they must authorize their approval in writing before staff use the equipment.
- D. For safety, security, and patient privacy reasons, staff may not use personally owned cellphones in patient care areas or when patients are present with them. With the exception of break times, staff may only use personal cellphones to make brief phone calls during working hours as allowed by Shared Services policy 060-037, "Use of State Property." Departments may establish additional restrictions for safety reasons.
- E. All information on any device used while conducting state business (e.g., any text, browsing history) is discoverable under public records requests state laws.
- F. Oregon State Hospital (OSH) follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- G. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Patient care area" is as defined in OSH policy 5.017, "Dress Code for Staff." Patient care area for the purpose of this policy means any portion of the facility wherein a patient is intended to be examined or treated.
- B. "Personally owned equipment" in this policy means equipment owned by staff such as cellphones, tools, supplies, or other items. In this policy, equipment does not include books.
- C. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. PROCEDURES

V. ATTACHMENTS

VI. RELATED OSH POLICIES AND PROTOCOLS

3.002 Electrical Equipment and Resource Conservation

5.017 Dress Code for Staff

8.034 Property Claims for Employee Personal Property

8.006 Vehicle Usage

VII. REFERENCES

Department of Administrative Services. *Liability self-insurance policy manual*, 125-7-201. Author.

Shared Services. *Use of state property*, DHS-060-037. Author.